

24STCV17957 24STCV17957

County: los-angeles

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Case Number: 24STCV17957 Hearing Date: June 30, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

NUNTINEE GREEN, et al.,

Plaintiffs,

vs.

GARY POWELL, et al.,

Defendants.

Case No.:

24STCV17957

Hearing Date:

June 30, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANTS GARY

POWELL AND RITA C. POWELL'S MOTION TO COMPEL THE ATTENDANCE AT DEPOSITION AND PRODUCTION OF DOCUMENTS OF PLAINTIFFS NUNTINEE GREEN, TANYA ALLEN GREER, AND RACHINEE GREEN

Background

On July 18, 2024,

Plaintiffs Nuntinee Green, Tanya Allen Greer, and Rachinee Green (collectively, "Plaintiffs") filed this action against Defendants Gary Powell and Rita C.

Powell (jointly, "Defendants"), alleging eight causes of action for (1) breach of implied warranty of habitability, (2) breach of statutory warranty of habitability, (3) breach of the covenant of quiet enjoyment, (4) negligence, (5) violation of Civil Code section 1942.4, (6) private nuisance, (7) violation of City of Los Angeles Tenant Antiharassment Ordinance, and (8) violation of Unfair Competition Law (Bus. & Prof. C. §§ 17200-09).

On April 7, 2026, the

Court held an informal discovery conference and discussed Plaintiffs' deposition. The Court ordered the following: "The date for any Motion to Compel Deposition by Defendants is continued to 45 days from today's date. Plaintiff did agree to meet and confer with Defendants regarding new deposition dates within 5 days after the hearing on the Motion to Disqualify if the Motion is denied." (Minute Order 4/7/26.)

However, on May 28,

2026, the Court granted Defendants' motion to disqualify counsel. It does not appear that Plaintiffs obtained new counsel.

Defendants now move for an

order compelling Plaintiffs to appear for deposition and to produce documents as described in the deposition notices previously served in this action. Defendants also seek "monetary sanctions in the amount of \$1,435.00 against Plaintiffs and their counsel of record, Geoffrey A. Bowen, Esq. and Friedman & Chapman, LLP, jointly and severally." (Notice of Mot., 2:11-13.) Plaintiffs did not file an opposition.

Legal Standard

Under Code of Civil Procedure section 2017.010,

“any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”

“If, after service of a

deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having

served a valid objection under Section 2025.410,

fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ.

Proc., § 2025.450,

subd. (a).)

“If a deponent fails to

answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” (Code Civ. Proc., § 2025.480, subd. (a).)

Under Code of Civil Procedure section 2025.4,

subdivision (g)(1), “[i]f a motion under subdivision (a) is granted, the

court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the

deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Discussion

Defendants explain a long history of an inability to get Plaintiffs to sit for their depositions. Defendants first served deposition notices on December 8, 2025 for Plaintiffs Tanya Greer and Nuntinee Green, setting the depositions for December 30, 2025. (Zinn-McBride Decl., ¶ 3; Ex. A.) However, Plaintiffs' counsel subsequently advised Defendants' counsel that they were unavailable on the noticed date, and the parties engaged in further meet and confer efforts to reschedule, ultimately providing "February 17, 2026, as the deposition date for Plaintiffs Tanya Greer and Nuntinee Green, and February 27, 2026, for Plaintiff Rachinee Green." (Id., ¶¶ 3-4; Exs. C-D.) Defendants' counsel attests she promptly served deposition notices, but thereafter, "[o]n February 13, 2026, the Friday before the scheduled depositions, Plaintiffs' counsel emailed me to request rescheduling of the February 17, 2026 depositions, without providing any valid reason or formal objection." (Id., ¶¶ 4-5; Exs. E-F.) Defendants' counsel "responded the same day, advising that the depositions would proceed as noticed and that Certificates of Non-Appearance would be taken if Plaintiffs failed to appear," but "Plaintiffs did not appear for their depositions on February 17, 2026." (Id., ¶¶ 5-6; Exs. G-J.)

Afterwards, Plaintiffs' counsel suggested to Defendants' counsel that the "depositions should be continued due to the trial date being several months away and referenced a pending motion for disqualification, but did not provide any valid legal basis for further delay." (Zinn-McBride Decl., ¶ 7; Ex. H.) Defendants' counsel sought to have the deposition dates earlier, but Plaintiffs' counsel suggested July 2026. (Ibid.) Defendants' counsel explains that they "appeared for an Informal Discovery Conference on April 7, 2026, and the Court advised that Plaintiffs' Counsel's last minute representation of 'unavailability' was not a valid objection." (Id., at ¶ 8.)

Plaintiffs' counsel's last-minute cancellation of the depositions and failure to provide earlier dates demonstrate a lack of willingness to participate in discovery in a timely manner. Although Defendants filed a motion to disqualify counsel, Plaintiffs' counsel still represented Plaintiffs at the time the depositions were noticed and had multiple months until the hearing on the pending motion for disqualification. Based on the foregoing explanation and the parties' history, the Court finds it necessary to compel Plaintiffs to appear for deposition and to produce documents as described in the deposition notices. The Court notes that Defendants request that the depositions occur fifteen days from the date of this Order; however, due to Plaintiffs' current lack of counsel, the Court orders

the depositions to occur within 60 days of the date of this Order.

Defendants' counsel also seeks sanctions in the amount of \$1,435.00.

(Zinn-McBride Decl., ¶ 9.) Defendants' counsel explains she spent three hours preparing "the moving papers, including the supporting declaration, exhibits, and proposed order" and anticipates spending one hour evaluating the opposing papers and preparing reply papers and one hour attending the hearing. (Ibid.) Additionally, Defendants' counsel seeks \$60 for a filing fee. Defendants' counsel has an hourly rate of \$275. (Ibid.) Given the history of the failed depositions, the Court finds that granting sanctions is warranted. Defendants' request is reasonable; however, due to Plaintiffs' lack of opposition, the Court reduces the requested amount of hours by one, for a total award of \$1,160.

Conclusion

Based on the foregoing, Defendants' motion for an order compelling Plaintiffs Nuntinee Green, Tanya Allen Greer, and Rachinee Green to appear for deposition and to produce documents is GRANTED. The depositions are to occur within 60 days of the date of this Order. Defendants' request for monetary sanctions against Plaintiffs and their counsel of record, Geoffrey A. Bowen, Esq. and Friedman & Chapman, LLP, is also GRANTED, in the amount of \$1,160.00 payable within 30 days of the date of this Order.

Defendants are ordered
to give notice of this Order.¿

DATED: June
30, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court